

1.1 The overriding objective

[The Family Court Practice \(The Red Book\)](#) > *Part III Procedure Rules (FPR and CPR)* > *SI 2010/2955 Family Procedure Rules 2010* > *Part 1 Overriding Objective*

Part III Procedure Rules (FPR and CPR)

[3.1]

Note—By virtue of [CCA 2013, s 17](#), Sch 9, para 11, in relevant legislation: (i) any reference that is or is deemed to be a reference to a county court is to be read as a reference to the county court; and (ii) any reference that is or is deemed to be a reference to a judge of a county court is, if the context permits, to be read as a reference to the county court and otherwise is to be read as a reference to a judge of the county court. Note that (ii) does not apply to a reference to a holder of a particular office (for example, a reference to a circuit judge).

[SI 2010/2955](#)

Family Procedure Rules 2010

Part 1

Overriding Objective

[3.2]

1.1 The overriding objective

- (1) These rules are a new procedural code with the overriding objective of enabling the court to deal with cases justly, having regard to any welfare issues involved.
- (2) Dealing with a case justly includes, so far as is practicable –
 - (a) ensuring that it is dealt with expeditiously and fairly;
 - (b) dealing with the case in ways which are proportionate to the nature, importance and complexity of the issues;
 - (c) ensuring that the parties are on an equal footing;
 - (d) saving expense; and
 - (e) allotting to it an appropriate share of the court's resources, while taking into account the need to allot resources to other cases.

[3.2[1]]

Scope—The overriding objective is fundamental and the bedrock of the 2010 Rules. The FPR are deliberately not designed to answer every possible procedural question that could arise, and the overriding objective provides a compass to guide the courts, the parties and legal advisers. The overriding objective is 'the starting point for any case management decision in family proceedings': *Re X (Care Proceedings: Jurisdiction and Fact Finding)* [2020] EWHC 2742 (Fam), [\[2021\] 2 FLR 449](#).

'new procedural code' (r 1.1(1))—These words denoted an intention to start afresh, however it is the procedure that changed, not the underlying law. Authorities on the interpretation of earlier rules may not be followed.

'an equal footing' (r 1.1(2)(c))—In *Maltez v Lewis (2000) 16 Const LJ 65, ChD*, Neuberger J, when applying the identical rule in the CPR, held that it did not mean that the court could prevent one party from employing leading counsel where the other could not afford to do so.

1.1 The overriding objective

'saving expense' (r 1.1(2)(d))—The cost of taking a particular step has to be justified before the court can order it to be taken whether the cost will fall on the party or public funds. Clear examples of this are the court's duty to restrict expert evidence (see FPR 2010, r 25.4) and the power to control evidence (see FPR 2010, r 22.1) but saving expense is a general principle.

'the court's resources' (r 1.1(2)(e))—The increasing pressures on the family justice system mean this rule has assumed increasing importance over the years. Parties and their advisers have a particular duty to keep the court informed of developments that may affect the use of court resources.

Litigants in person do not form a privileged class for whom the rules are modified or disapplied and are expected to take steps to familiarise themselves with the relevant procedure: *Barton v Wright Hassall LLP* [\[2018\] 1 WLR 1119](#), UKSC. However, the court may need to adjust the trial process to take account of the inequality of arms where other parties are represented: eg *DDR v BDR* [\[2024\] EWFC 278](#) at [29]–[31]

[3.3]

1.2 Application by the court of the overriding objective

[The Family Court Practice \(The Red Book\)](#) > [Part III Procedure Rules \(FPR and CPR\)](#) > [SI 2010/2955 Family Procedure Rules 2010](#) > [Part 1 Overriding Objective](#)

The court must seek to give effect to the overriding objective when it –

- (a) exercises any power given to it by these rules; or
- (b) interprets any rule.

[3.3[1]]

Scope—This rule indicates that a purposive approach is to be adopted. The overriding objective is the crucial aid to interpretation of the rules.

[3.4]

1.3 Duty of the parties

[The Family Court Practice \(The Red Book\)](#) > [Part III Procedure Rules \(FPR and CPR\)](#) > [SI 2010/2955 Family Procedure Rules 2010](#) > [Part 1 Overriding Objective](#)

The parties are required to help the court to further the overriding objective.

[3.4[1]]

'help the court'—FPR 2010, rr 1.1 and 1.2 suggest that achieving the overriding objective is the duty of the court and r 1.3 confirms this by not imposing a duty on the parties to further the overriding objective but instead requiring them to 'help the court' to further the overriding objective.

[3.5]

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1.4 Court's duty to manage cases

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- (1) The court must further the overriding objective by actively managing cases.
- (2) Active case management includes –
 - (a) setting timetables or otherwise controlling the progress of the case;
 - (b) identifying at an early stage –
 - (i) the issues; and
 - (ii) who should be a party to the proceedings;
 - (c) deciding promptly –
 - (i) which issues need full investigation and hearing and which do not; and
 - (ii) the procedure to be followed in the case;
 - (d) deciding the order in which issues are to be resolved;
 - (e) controlling the use of expert evidence;
 - (f) encouraging the parties to use a non-court dispute resolution procedure if the court considers that appropriate and facilitating the use of such procedure;
 - (g) helping the parties to settle the whole or part of the case;
 - (h) encouraging the parties to co-operate with each other in the conduct of proceedings;
 - (i) considering whether the likely benefits of taking a particular step justify the cost of taking it;
 - (j) dealing with as many aspects of the case as it can on the same occasion;
 - (k) dealing with the case without the parties needing to attend at court;
 - (l) making use of technology; and
 - (m) giving directions to ensure that the case proceeds quickly and efficiently.

[3.5[1]]

Amendments—[SI 2012/3061](#); [SI 2014/843](#).

Scope—FPR 2010, r 1.4 contains a list of various case-management elements but is not exhaustive. It summarises aims that are implemented in various ways throughout the FPR. Although rigorous case management in family proceedings has been firmly embedded as a judicial duty for some time, it is increasingly being brought into 'sharper focus': see *Re A, B and C (Child Arrangements: Final Order at Dispute Resolution Appointment)* [2025] EWCA Civ 25.

[3.6]

1.5 The Welsh language

[The Family Court Practice \(The Red Book\)](#) > [Part III Procedure Rules \(FPR and CPR\)](#) > [SI 2010/2955 Family Procedure Rules 2010](#) > [Part 1 Overriding Objective](#)

- (1) Nothing in the overriding objective undermines the principles provided by section 1 of the [Welsh Language \(Wales\) Measure 2011](#) that the Welsh language has official status in Wales or by [section 22](#) of the Welsh Language Act 1993 that in any legal proceedings in Wales the Welsh language may be used by any person who desires to use it.
- (2) The parties are required to assist the court to put into effect the principles set out in paragraph (1).

[3.6[1]]

Amendments—Inserted by [SI 2018/1172](#).

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